



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 6 1992

DOT-E 10567

1. BSL Transport, Quievrechain, France, (U.S. Agent: R. G. Bagley Associates, Inc., Mamaroneck, N. Y.), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations, to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of certain corrosive liquids described in paragraph 3 below subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification ASME Code "U" stamped portable tank, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on BSL Transport's application dated March 9, 1991, and supplemental material dated March 12, 1991, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Fluorosulfonic acid and sulfuryl chloride, classed as corrosive materials.

4. PROPER SHIPPING NAME (49 CFR 172.101). Fluorosulfonic acid and Sulfuryl chloride, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.247, 173.274 and 178.245.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and cargo vessel.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a non-DOT specification ASME Code "U" stamped portable tank, mounted in an ISO frame, designed and constructed in accordance with BSL Transport's drawing numbers ENS 904012, THASME4, and THASME5, and other technical specifications and calculations on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA) and in compliance with the following:

(1) Specifications/Codes: ASME Code Section VIII, Division 1; and DOT 51 mall respects except that the tank has two (2) manholes on top.

(2) Water Capacity (U.S. Gallons): 4,095.

(3) Material: SA 240 - 316TI.

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(4) Tank Dimensions (inches) and joint coefficient:

Outside diameter.....	77.40
Total length.....	219.37
Shell thickness.....	0.31
Head thickness.....	0.31
Joint coefficient.....	1.00
Corrosion allowance.....	-0-

(5) Design Pressure (psig): 101.5 internal; and 5.8 external.

(6) Test Pressure, Minimum (psig): 186.9

(7) Openings: Two (2) 19.69 inch diameter manholes as depicted in drawings referenced in paragraph 7.a. above; no bottom outlets.

(8) Tank external surface area (square feet):
392.67

(9) Pressure Relief Devices: One (1) 2.5 inch diameter spring loaded safety relief valve in series with and outboard of a 2.5 inch rupture disc, both set at 110 psig. Total rate of flow is 500,947 SCFH. The space between the frangible disc and the safety relief valve must be provided with a suitable tell-tale indicator to permit detection, prior to and during shipment, of disc rupture, pinholing or leakage which could cause a malfunction of the pressure relief system.

(10) Maximum Gross Weight (pounds): 67,197

(11) Tare Weight (pounds): 10,803

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no changes or modifications are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle or cargo vessel used to transport packages covered by this exemption.

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c. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 10567".

d. Each portable tank manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

e. Each portable tank must be: (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every five years in accordance with 49 CFR 173.32 as prescribed for DOT Specification 51 portable tanks.

f. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

g. "DOT-E 10567" must be stamped on the metal manufacturer's data plate on the line which reads "U.S. DOT Specification No.".

h. For each portable tank, the manufacturer must prepare a certificate which must be signed by a responsible official of the manufacturer and of the independent inspection agency certifying that the portable tank is designed and constructed in accordance with the ASME Code and this exemption. The certificate for the first portable tank fabricated must be submitted to the OHMEA prior to the initial shipment.

i. Rear end protection for the motor vehicle must be provided which meets the requirements of 49 CFR 178.340-8(b) and 393.86.

j. Each portable tank must be secured to the motor vehicle in conformance with the requirements of 49 CFR 393.100 through 393.106.

k. A test report documenting a satisfactory prototype test for each tank design must be on file with the OHMEA prior to the first shipment.

l. Hydrostatic test certificates for each tank must be maintained by the manufacturer or owner and made available upon request to any representative of the Department of Transportation.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. September 30, 1993.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.